

110	Nassiri v. Nassiri 2025-01535120	MOTION TO STRIKE (ANTI-SLAPP) - GRANTED Plaintiff Damian Nassiri sued Defendant Rattanaorn “Joy” Nassiri for (1) intentional infliction of emotional distress, (2) Fraud and (3) Negligence. Plaintiff and Defendant are currently in marital dissolution proceedings. In this civil action, Plaintiff alleges Defendant deceitfully filed for divorce and sought a restraining order against him. Defendant has moved to strike the complaint under Code of Civil Procedure section 425.16. To invoke the protection of the anti-SLAPP statute defendant must show that plaintiff's lawsuit “arises from” defendant's exercise of free speech or petition rights as defined in CCP § 425.16(e). (Equilon Enterprises, LLC v. Consumer Cause, Inc. (2002) 29 Cal.4th 53, 61.) Defendant argues that Plaintiff's claims arise entirely from Defendant's protected petitioning activity, including: 1. Seeking a TRO and a DVRO; 2. Filing a petition for divorce; 3. Communicating with law enforcement regarding domestic violence and child safety; and 4. Changing the locks of the family home pursuant to the TRO. Courts consistently hold that seeking restraining orders, filing divorce actions, communicating with law enforcement, and enforcing court orders constitute protected petitioning activity. (Navellier v. Sletten (2002) 29 Cal.4th 82, 90.) Statements and writings made during judicial proceedings are protected by the anti-SLAPP statute. Filing a lawsuit is an exercise of a party's constitutional right to petition for grievances. A claim for relief filed in court is “indisputably a statement or writing made before a judicial proceeding.” (Navellier v. Sletten (2002) 29 Cal.4th 82, 90; Briggs v. Eden Council for Hope & Opportunity (1999) 19 Cal.4th 1106, 1115.) A statement or writing is “in connection with” litigation if it “relates to the substantive issues in the litigation and is directed to persons having some interest in the litigation.” (Neville v. Chudacoff
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		(2008) 160 Cal.App.4th 1255, 1266; Seltzer v. Barnes (2010) 182 Cal.App.4th 953, 962.) Here, each cause of action arises from the fact that Defendant called the police on Plaintiff, had him arrested, sought a TRO, and filed for divorce. See Complaint ¶¶5, 7, 8, 17, 21, 22, 30. While Plaintiff also pleads facts relating to Defendant’s text messages, it is clear that, but for, the filing for a restraining order and divorce, there would be no case here. The fact that Plaintiff’s Complaint is full of vitriolic language towards Defendant and was filed just days after defendant filed for divorce and a TRO appears to suggest that plaintiff filed this action to chill the valid exercise of Defendant’s constitutional rights of freedom of speech and petition. (See Complaint, and Decl. of Rattanaporn ¶¶2, 5, 11, 12.) The court finds that Defendant has sustained her burden on the first prong of the anti-SLAPP test to demonstrate the lawsuit arises from protected activity. The burden thus shifts to Plaintiff to establish under the second prong a “probability” that plaintiff will prevail on his claims. (CCP § 425.16(b).) Plaintiff did not file a declaration or any evidence in support of the opposition to the motion to strike. The declaration and text messages attached to the complaint do not sustain the burden of establishing a probability of prevailing on any of the causes of action. Although Plaintiff filed a First Amended Complaint on 4/23/2026, this does not affect this court’s authority to grant this motion. (See Salma v. Capon (2008) 161 Cal.App.4th 1275, 1280; Dickinson v. Cosby (2017) 17 Cal.App.5th 655, 677–678; Sylmar Air Conditioning v. Pueblo Contracting Services, Inc. (2004) 122 Cal.App.4th 1049.) The motion to strike the complaint is GRANTED. Any entitlement to fees and costs should be made by separate motion. (Code Civ. Proc., §425.16(c)(1).) Court clerk to give notice.
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111	Premier Liberty Development, LLC v Nguyen 2018-01008782	DEMURRER TO AMENDED COMPLAINT – NO TENTATIVE RULING Plaintiff Premier Liberty Development (Premier) filed a first amended supplemental complaint asserting a single cause of action for declaratory relief. (ROA 633) Velocity demurred to Plaintiff’s complaint on the grounds that it fails to state facts sufficient to constitute a cause of action because the claim is insufficiently pled. See, Code Civ. Proc. §§ 430.10(e) and 430.50(a). Premier’s request for judicial notice is GRANTED. The court will take judicial notice of exhibits 1 through 10 to the Stein Declaration. “A general demurrer is usually not an appropriate method for testing the merits of a declaratory relief action, because the plaintiff is entitled to a declaration of rights even if it is adverse to the plaintiff’s interest.” (Qualified Patients Assn. v. City of Anaheim (2010) 187 Cal.App.4th 734, 751.) <u>THE PARTIES SHALL BE PREPARED TO ADDRESS THE FOLLOWING QUESTIONS AT THE HEARING ON THE DEMURRER:</u> If the court were to grant the requested declaratory relief, what (if any) would be the impact on title to the property vis-à-vis the current owner? Would the current owner’s right to title be affected? If so, how? If not, why not? What is Velocity’s current interest in the property? What is Premier’s current interest in the property? What was the basis of the restitution order from Premier to Velocity? Could the arguments raised in this demurrer have been raised in Velocity’s previous demurrer? How and why or why not? If the arguments raised in this demurrer could have been raised in Velocity’s previous demurrer, may the court consider them now?
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